City of TORRANCE California

Date: June 17, 2025

To: Honorable Mayor and Members of the City Council

From: Planning Commission
Michelle Ramirez, Community Development Director

By: Luis E. Velazquez, Planning Associate | LVelazquez@TorranceCA.gov

Subject: Planning Commission and Community Development – Conduct Public Hearing to Consider Appeal of Planning Commission's Approval of a Precise Plan of Development (PRE23-00013) to Allow the Construction of a New Two-story Single-family Residence with Accessory Dwelling Unit (ADU), on Property Located within the Hillside Overlay in the Single Family Residential District (R-1) Zone at 22209 Susana Avenue (APN 7515-001-025), Deny the Appeal, Adopt **RESOLUTION** and Determine a Categorical Exemption from the California Environmental Quality Act (CEQA). Expenditure: None.

RECOMMENDATION

Recommendation of the Planning Commission and Community Development Director that City Council:

1. Conduct public hearing; and
2. Deny the appeal; and
3. Adopt a **RESOLUTION** denying the appeal and upholding the Planning Commission approval of PRE23-00013 as provided for in Division 9, Chapter 1, Article 41 of the Torrance Municipal Code to allow the construction of a new two-story single-family residence, on property located within the Hillside Overlay in the R-1 Zone at 22209 Susana Avenue; and
4. Determine a Categorical Exemption from the CEQA; Article 19, Sections 15303 (New Construction).

FUNDING

None required.

DISCUSSION

The project applicant, Douglas Leach (Kirk Feldkamp), requests consideration by the City Council to allow the construction of a new two-story, single-family residence with an ADU, on property located within the Hillside Overlay in the R-1 Zone at 22209 Susana Avenue.

9B

Analysis
As the development standards of the R-1 Zone as well as the planning and design provisions of the Hillside Overlay are applicable to the project, discretionary review and approval of the entitlement below is required.

- PRE23-00013 to allow new construction above 14' in height.

Background
On January 17, 2024, the Planning Commission held a public hearing to consider the residential renovation project. At that meeting, the applicant provided an overview of the project and after some deliberation the applicant requested a continuance to a date uncertain to allow additional time to conduct public outreach and consider design changes to the project. A motion for continuance to a date uncertain was approved by a vote 6-0.

On July 24, 2024, the Planning Commission held a public hearing to consider a revised residential renovation project. At that time the applicant brought forward a design that reduced the overall floor area and alleviated potential view impacts by scaling down the second floor. After some deliberation the applicant again requested a continuance to a date uncertain to allow additional time to conduct public outreach and potential design changes to the project. A motion for continuance to a date uncertain was approved by a vote 7-0.

On March 03, 2025, the applicant submitted a revised project for a new two-story single-family residence with an ADU. Staff reviewed the revised project and determined it complied with the objective development standards of the R-1 Zone and was consistent with the Low-Density Residential land use designation. In addition, pursuant to the Housing Accountability Act (HAA), Government Code Section 65589.5, staff determined the revised project met the definition of a "housing development project" and therefore only the objective development standards of the TMC could be applied for purposes of evaluating the revised project.

On March 19, 2025. the revised new two-story single-family residence with an ADU project was approved by the Planning Commission. A copy of the Planning Commission staff report has been included as Attachment 5.

City Council Appeal
On April 1, 2025, an appeal was filed by Jennifer and Matthew Minich, residents of 5803 Avenue A, contesting the Planning Commission's approval of PRE23-00013 on March 19, 2025. The appellants oppose the construction of a new two-story residence with an ADU at 22209 Susana Avenue, citing concerns related to view obstruction, application of state housing law, and potential impacts to the character of the surrounding Hillside Overlay neighborhood.

In their appeal, the appellants raise objections to the project's reliance on the HAA, express concern over the loss of protected views from their property and assert that the project sets a precedent for bypassing the intent of the Hillside Overlay through nominal ADU additions. They also reference dissatisfaction with the applicant's community outreach and the City's ability to apply discretionary findings under current state law.

In addition to requesting that the City Council overturn the Planning Commission's decision, the appellants urge the City to consider amending the Hillside Overlay Ordinance to incorporate

objective development standards. They assert that such revisions would better equip the City to preserve neighborhood character while remaining consistent with the requirements of the HAA.

Housing Accountability Act (HAA) Applicability
Pursuant to Government Code Section 65589.5, also known as the HAA, the City's review of the revised project is limited to objective development standards as defined by local ordinance. The HAA is intended to significantly limit the ability of local agencies to disapprove, or conditionally approve, housing development projects that comply with applicable, objective general plan, zoning, and subdivision standards and criteria. As revised, the proposed two-story single-family residence with an ADU qualifies as a "housing development project" under the HAA.

The HAA defines objective standards as those that are measurable, clear, and do not rely on personal judgment or discretion. In contrast, the planning and design provisions of the Hillside Overlay involve subjective criteria that require interpretation, such as considerations of neighborhood compatibility and view impacts. These provisions require discretionary interpretation and are therefore not considered objective standards. Consequently, the application of the Hillside Overlay provisions is superseded by the HAA in this instance.

Staff have confirmed that the subject project, as currently submitted, meets all applicable objective development standards of the R-1 Zone, including height, lot coverage, open space, setbacks, and floor area ratio. As such, the project is subject to streamlined review and approval under the HAA.

General Plan Land Use Designation
The site has a General Plan Land Use Designation of Low-Density Residential (R-LO). Development in the R-LO land use designation is characterized generally by detached one- and two-story single-family residences on individual lots forming a cohesive neighborhood. The proposed construction of a new two-story single-family residence is consistent with the land use designation.

Zoning Designation and Adjacent Land Uses
The project site is designated as R-1 Zone. As shown below, the project site is bounded by four parcels that share the same zoning designation and are developed with similar land uses to the north, south, east and, west.

- North: R-1 - Hillside Overlay, One-Story and Two-Story Single-Family Residences
- East: R-1 - Hillside Overlay, One-Story and Two-Story Single-Family Residences
- South: R-1 - Hillside Overlay, One-Story Single-Family Residences
- West: R-1 – City of Redondo Beach

Project Site
The project is situated on a rectangular shape lot measuring 7,020 square feet in area, which exceeds the minimum lot area and minimum dimensions required in the R-1 Zone. The project site is located at the southwest corner of Avenue A and Susana Avenue and is orientated toward east. The building pad of the proposed residence would be raised approximately 10" above the existing grade level at the southern west corner to accommodate for changes in topography. The pad height of the adjacent one-story residence to the south at 22215 Susana Avenue sits slightly below the project site, whereas the pad heights of the one and two-story residences across the street along Avenue A and Susana Avenue are situated above the project site. It should be noted the residences that abut the rear of the project site are located within the City of Redondo Beach.

Building Floor Plan

The first floor, measuring 1,310 square feet, features an open-concept layout that seamlessly integrates the kitchen, dining area, and great room, creating a spacious and cohesive living environment. Large sliding doors lead to an outdoor patio, enhancing indoor-outdoor connectivity and maximizing natural light. The design emphasizes functionality and modern living, making it well-suited for entertaining and everyday use. The new garage measures 450 square feet and is orientated towards the east. As previously mentioned, the existing driveway will be repositioned along Susana Avenue to accommodate the new location of the garage and to provide greater separation from the intersection. The second floor area measures 1,816 square feet and features a traditional floor plan with separated rooms for comfort and privacy and that include three bedrooms with personal bathrooms, a playroom and a laundry room. The master bedroom provides access to a 320 square foot balcony, while the playroom has access to a 164 square foot balcony. Staff notes that the project statistics include only one of the decks, however this can be corrected during the plan check process.

Building Setbacks and Site Improvements

The residence will be centered on the lot, providing a 20.8' front yard setback, a 6.5' yard setback to the south, a 10.3' exterior side yard setback to the north, and a 21.42' rear yard setback. All setbacks meet or exceed the minimum requirements of the R-1 Zone. Additionally, the ADU will have a 5' exterior side yard setback from the north property line and a 20' front yard setback from the west property line. An existing retaining wall located in the rear yard area would be reconstructed parallel to the rear property line. Additionally, the site plan indicates a new pool and spa, which would be reviewed under a separate permit at the time of plan check. The existing driveway will be repositioned along Susana Avenue to accommodate the new location of the garage and to provide greater separation from the intersection.

Building Height

The applicant initially proposed a two-story residence with a height of 25.1', measured from the topmost ridgeline (128.0') down to the lowest adjacent grade (102.9'). The revised proposal maintains a height of 25.1', now measured from the updated topmost ridgeline (128.5') down to the corrected lowest adjacent grade (103.4') and is within the allowable 27' height limit for a two-story residence in the R-1 Zone.

Staff notes a discrepancy on the cover sheet and elevation plans, which incorrectly list the lowest adjacent grade as 102.9' and the height as 25.6'. The revised silhouette certification confirms the correct lowest adjacent grade of 103.4' and the highest point of elevation as 128.5'. A condition of approval has been added requiring the plans to reflect the correct height of 25.1' and the lowest adjacent grade of 103.4' at the time of plan check.

Floor Area, Lot Coverage and Open Space

The total gross floor area of the proposed residence is 4,145 square feet, which includes the garage, volume areas exceeding 17 feet in height, the front porch, and the attached ADU. This results in a Floor Area Ratio (FAR) of 0.59, consistent with the 0.60 maximum allowed in the R-1 Zone. Staff notes that the project is not subject to the 0.50 net interior FAR limit of the Hillside Overlay, as it does not involve remodeling or additions to an existing residence.

The residence covers 2,727 square feet of the lot, or 39.4%, and complies with the 40% maximum lot coverage limit of the R-1 Zone.

The proposed residence is centrally located on the project site, resulting in substantial open space within the front and rear yard areas. These areas provide a combined total of 4,465 square feet of usable open space, which is equal to 64% of the lot area—exceeding the minimum 33% open space requirement.

Provided below is the project summary of the proposed residence:

22209 Susana Avenue		
	Proposal	
Lot Area	6,918	sf
Proposed Building Height	25.6	ft
Maximum Two-Story Building Height Limit	27	ft
Proposed First Floor Area	1,310	sf
Proposed Second Floor Area	1,816	sf
Proposed Garage Floor Area	450	sf
Proposed Total Floor Area	3,576	sf
Proposed Total Floor Area	3,576	sf
Front Porch	96	sf
Volume Areas > 17’	118	sf
Accessory Dwelling Unit (ADU)	355	sf
Proposed Floor Area Ratio	4,145	sf (0.59 FAR)
Maximum Floor Area Ratio Limit	4,151	sf (0.60 FAR)
Proposed Lot Coverage	35.6%	2,461 sf
Maximum Lot Coverage Limit	40%	2,767 sf
Proposed Open Space Area	68%	4,705 sf
Minimum Open Space Requirement	33%	2,305 sf

Hillside Overlay

In accordance with Article 41, Chapter 1, Division 9 of the TMC, the Planning Commission, or City Council on appeal, is required to make findings related to the planning and design of the project, including its potential to have a substantial adverse impact on the view, light, air, and privacy of surrounding properties. To assist in the analysis, the applicant constructed a silhouette of the proposed two-story residence, with its height verified by a licensed engineer. Staff conducted site visits on December 26, 2023, January 4, 2024, May 1, 2024, May 8, 2024, and March 11, 2025, to assess the potential for such impacts.

However, as the project involves the construction of a new single-family residence with an ADU on a legal lot and complies with all applicable objective standards of the TMC, it is subject to the provisions of the HAA. Under the HAA, the City may only deny or reduce the density of the project if it finds, based on substantial evidence in the record, that the project would result in a specific, adverse HAA. Under the HAA, the City may only deny or reduce the density of the project if it

finds, based impact on public health or safety, and that there is no feasible method to satisfactorily mitigate or avoid that impact.

Prior Hearings and Publications
In accordance with the Torrance Municipal Code (TMC), a notice for a public hearing was made on February 28, 2025, announcing that the Torrance Planning Commission would conduct a public hearing on March 19, 2025, to consider a development application filed by Douglas Leach (Kirk Feldkamp) for approval of PRE23-00013 to allow the construction of a new two-story residence with an ADU, on property located within the Hillside Overlay in the R-1 Zone at 22209 Susana Avenue. This notice was posted at the site and mailed to all registered property owners located within a 500' radius of the exterior boundaries of the project site. Additionally, a notice was published in the local newspaper (The Daily Breeze) and posted on the City of Torrance webpage.

At the public hearing of March 19, 2025, the Planning Commission reviewed the project, heard public comments, and a motion to approve the project passed a roll call vote of 4 to 2. Subsequently, an appeal to the City Council was filed on April 1, 2025.

A notice was made on June 6, 2025, that City Council would conduct a public hearing on June 17, 2025, to consider an appeal of Planning Commission approval of the project. This notice was posted at the site and mailed to all registered property owners located within a 500' radius of the exterior boundaries of the project site. Additionally, a notice was published in the local newspaper (The Daily Breeze) and posted on the City of Torrance webpage.

Conclusion
Staff have reviewed the revised project and determined the project complies with the objective development standards of the R-1 Zone and is consistent with the R-LO land use designation. In addition, pursuant to the Government Code Section 65589.5 (otherwise known as HAA), staff has determined the revised project meets the definition of a “housing development project”. Therefore, only objective development standards of the TMC can be applied for purposes of evaluating the revised project, and the Hillside Overlay cannot be applied due to their subjective development standards. Therefore, staff recommends denial of the appeal.

ENVIRONMENTAL FINDINGS

Minor alterations of existing structures involving negligible expansion of use are Categorically Exempt by the Guidelines for Implementation of the CEQA; Article 19, Sections 15303 (New Construction).

ATTACHMENTS

1. Resolution for Approval
2. Location and Zoning Map
3. Proofs of Publication and Notification
4. Appeal Filing
5. Planning Commission Staff Report
6. Project Plans